

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

June 11, 2012

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Absent: Mr. Allen. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Collins, and pursuant to support received by Mr. Pierson and Mr. Brown, agenda item #23(d) was removed from the Consent Agenda. Upon request by Mr. Pierson, and pursuant to support received by Mr. Collins and Mr. Brown, agenda item #23(a) was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on May 29, 2012. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Ms. Ash. Upon inquiry regarding a voucher payable to AE Com Technical Services, Inc. for an enhancement plan for Cheyenne area classified roadways, Matt Ashby, Planning Services Director, advised services to be provided will involve the gathering of information on best practices utilized by other communities to manage and maintain street scape amenities along the public rights-of-way, noting vendor services will be paid through MPO (Metropolitan Planning Organization) funding. A request was made that a follow-up memo from Tom Mason, MPO Director, be submitted to clarify professional services that will be provided. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Ordinance approving and establishing revised water rates, sewer rates, tap fees, system development fees, administrative fees, service charges and penalties and septic and commercial dump rates, as recommended by the Board of Public Utilities (BOPU). Reporting for Finance Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Collins. Upon inquiry, Tim Wilson, BOPU Director, provided information on certain water and sewer rates as compared with other municipalities in Wyoming and Colorado. Motion carried. Voting "yes" -- all members of the governing body present. (#3948)

Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts established and Section 5.1.3 Official Zoning Map (Cheyenne City Map), of the Unified Development Code by changing the zoning classification from MUB Mixed-Use Business-Emphasis

District to MR-2 Medium-Density Residential-Developing District for Diamond Estates, 3rd Filing, a replat of the North 147.16 feet of Tract 327, Sunnyside Addition, 7th Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of Fillmore Avenue and Rock Springs Street). Reporting for Public Services Committee, Ms. Ash moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present. (#3949)

Ordinance appropriating moneys for the City of Cheyenne, Wyoming, for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2012, and ending June 30, 2012. Lois Huff, City Treasurer, provided an overview of the proposed budget; reviewed the budget process, and noted no changes have been made to department budgets pursuant to recent notification that employee health insurance coverage amounts will not change for the next fiscal year. She stated that, if necessary, reallocation of monies from health insurance savings could be accomplished through a future re-appropriation resolution. Mr. Brown moved to approve on second reading, seconded by Mr. Valdez. Upon inquiry, Doug Vetter, City Engineer, provided information relative to current and upcoming engineering projects and staffing levels, and stated it is difficult to be competitive in the area of engineer salary compensation compared with the general market. Upon inquiry, Ms. Huff clarified, pursuant to her earlier comments, that \$280,000.00 is the total amount that was budgeted for an anticipated health insurance increase and the amounts are still designated in departmental budgets. Motion carried. Voting "yes" -- all members of the governing body present.

Ordinance amending Ordinance No. 3925 defining the terms and conditions of employment for non-uniformed employees of the City of Cheyenne. Mr. Brown moved to approve on second reading, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body present.

Ordinance amending Ordinance No. 3926 defining the terms and conditions of employment for sworn officers of the City of Cheyenne Police Department. Mr. Brown moved to approve on second reading, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body present.

Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established and Section 5.1.3 Official Zoning Map (Cheyenne City Map), of the Unified Development Code, changing the zoning classification from HR-2 High Density Residential-Developing District to MR-2 Medium-Density Residential-Developing District for Lot 21, Block 14, Saddle Ridge, Cheyenne, Wyoming, to be known as a portion of Saddle Ridge, Fourth Filing (located at the southeast corner of the intersection of Whitney Road and Countryside Avenue) -- referred to Public Services Committee (sponsor -- Ms. Ash).

Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established and Section 5.1.3 Official Zoning Map (Cheyenne City Map), of the Unified Development Code, changing the zoning classification from CB Community Business District to LI Light Industrial District for Lots 2, 3, and 4, Block 387, Original City, Cheyenne, Wyoming (located at the southeast corner of the intersection of Dillon Avenue and W. 17th Street) -- referred to Public Services Committee (sponsor -- Ms. Ash).

Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in a portion of the North Half of the North Half of the Northeast Quarter of the Northeast Quarter of Section 11, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming (generally located at the I-25/I-80 Interchange, a.k.a. 4121 W. 5th Street) -- referred to Public Services Committee (sponsor -- Ms. Ash).

Resolution approving the budget of the Downtown Development Authority for the Fiscal Year beginning July 1, 2012 and ending June 30, 2013. John Sundahl, Chairman, DDA Board, requested a two week postponement to allow the Board opportunity to further review and act on the proposed budget. James Perrott Macneil spoke in opposition to all zone changes and annexations with Mayor Kaysen advising those topics did not pertain to the resolution topic on the floor. Mr. Brown moved to adopt, seconded by Mr. Valdez. Mr. Pierson moved to postpone for two weeks (to June 25, 2012), seconded by Mr. Collins. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Resolution amending Resolution No. 5140 pertaining to adoption of a revised fee schedule for inspection services, permits and other various services provided by the Cheyenne-Laramie County Board of Health. Motion (per Consent Agenda) carried. (#5399)

Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Diamond Estates, 3rd Filing, a replat of the North 147.16 feet of Tract 327, Sunnyside Addition, 7th Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of Rock Springs Street and Fillmore Avenue). Brad Emmons, AVI, agent for the applicant, advised he was present to answer any questions. Ms. Ash reported there was no recommendation on the item from Public Services Committee. Ms. Ash moved to adopt, seconded by Ms. Broyles. During comments on discussion held at the Committee meeting concerning set-back of garages, Mr. Emmons clarified this plat filing is an extension of Diamond Estates first and second filings, and explained the set-backs are consistent with the previous two phases of the development. Comments followed regarding support to consider better set-backs for future developments and perhaps addressing the matter in a future Unified Development Code revision. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Dr. Rinne voting "no". (#5400)

[CA] Resolution approving Sanitary Sewer Service, by User's Agreement, for Jason Earley and Laura Morton, 3307 Hayes Avenue, Cheyenne, Wyoming. Motion (per Consent Agenda) carried. (#5401)

[CA] Resolution supporting the City of Cheyenne's application for Transportation Enhancement Activities-Local (TEAL) funds for implementation of Phase I of the On-Street Bicycle System. Motion (per Consent Agenda) carried. (#5402)

[CA] Resolution prioritizing the City of Cheyenne's 2012 applications for Mineral Royalty Capital Construction Grants -- referred to Finance Committee (sponsor --Mr. Brown).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Lincoln Addition, Second Filing, a replat of a portion of Tract B, Lincoln Addition, and abandoned WYDOT right-of-way being situated in a portion of Section 1, T.13N., R.67W., 6th P.M., Cheyenne, Wyoming (located north of and adjacent to West Lincolnway, between Westland Road and Stinson Avenue) -- referred to Public Services Committee (sponsor -- Ms. Ash).

[CA] Resolution re-appropriating the Fiscal Year 2012 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor -- Mr. Brown).

Amended and Restated Lease Agreement between the City of Cheyenne and Safehouse Services for the lease of City-owned real property located at 714 West Fox Farm Road, Cheyenne, Wyoming. Mr. Brown moved to approve, seconded by Mr. Collins. Comments followed regarding the history of the property involving a lease agreement with the former Attention Homes and transference (by assignment) of the lease by Attention Homes to Safehouse, and ownership of buildings and improvements. Upon inquiry regarding the \$1.00/year lease, Dan White, City Attorney, provided information on the lease amount, stating that Safehouse believes they have taken over the existing assignment of the lease which, when Attention Homes was the lessee, was for a \$1.00/year and noted the lease amount has not been discussed. Upon inquiry regarding ownership of property vs. buildings and improvements on the property, Mr. White advised the City owns the land, and referenced an exception to improvements relative to temporary/moveable structures. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Dr. Rinne voting "no". (#5857)

[CA] Lease Agreement between the City of Cheyenne, Information Technology Division, and Xerox by Xerox Agent XESI for a high volume production color copier. Motion (per Consent Agenda) carried (\$985.81/month for 5 years). (#5858)

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Cheyenne Civic Center for public performances and rehearsals. Motion (per Consent Agenda) carried (revenue to the City \$3,200.00/performance). (#5859)

Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Cheyenne Civic Center for Youth Education Concerts. Kim Lovett, Executive Director, Cheyenne Symphony Orchestra (CSO), introduced members of the board present in the audience, and explained the agreement is for a community project that involves all 5th and 6th grade students within the City. She stated the purpose of the concerts are to provide cultural literacy, music appreciation and general musical knowledge to students. Anna Marie Hales, Cheyenne Symphony Board member, expressed appreciation for past City funding for the project and encouraged continued funding. Mr. Brown moved to approve in an amount not to exceed \$6,453.00, seconded by Mr. Valdez. Comments followed on funding participation level for the concerts by the City, Cheyenne Symphony and the school district with concern expressed relative to whether funding assistance for this purpose is part of the City's mission as City funds are not expended for other types of school district educational programs, such as math or science education. Ms. Hales discussed the contract arrangement the Civic Center has with the school district. During comments, Mayor Kaysen clarified the previous agenda item involving CSO use of the Civic Center provides revenue to the City and is not a City expenditure amount. Upon inquiry, Ms. Lovett provided information on concert costs and funding assistance received, which includes in-kind donations, to help cover the cost. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mr. Collins and Dr. Rinne voting "no". (#5860)

[CA] Contract between the City of Cheyenne, Youth Alternatives, and the State of Wyoming, Department of Family Services, regarding funding for the provision of Youth Alternatives Prevention Program services -- referred to Finance Committee.

[CA] Amendment No. 3 to Contract No. 5566, Juvenile Housing Agreement, between the City of Cheyenne and Southeast Wyoming Juvenile Services, LLC, to extend the agreement until August 31, 2012, and to reduce the compensation for services. Motion (per Consent Agenda) carried (amount not to exceed \$6,000.00/month). (#5566) Under other business, question was raised regarding status of the contract if Southeast Wyoming Juvenile Services determined it was not in agreement with the amendment and did not sign. City Attorney Dan White advised he has not heard anything from Southeast Wyoming Juvenile Services and reviewed the City's offering contained in the amendment. He stated if they are not interested in the amendment to the agreement and did not sign the agreement, the contract (i.e. amendment to the contract) would become null and void.

[CA] Amendment No. 1 to Contract No. 4173, Software License Agreement, between the City of Cheyenne, Cheyenne Police Department, and New World Systems Corporation for additional services involving field reporting software licensing and maintenance -- referred to Finance Committee.

[CA] Consideration of Bid #R-42-12 for furnishing three new pickup trucks for the Sanitation Division from Spradley Barr Motors, Cheyenne, Wyoming (Solid Waste Management fund. Motion (per Consent Agenda) carried (amount not to exceed \$70,123.00).

[CA] Consideration of Bid #M-21-12 for a contract between the City of Cheyenne, Engineering Department, and Kolbe Striping, Castle Rock, Colorado, for the 2012 Pavement Marking Project (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$87,186.00). (#5861)

[CA] Consideration of Bid #R-41-12 for furnishing 66 new Glock pistols and to trade-in 66 surplus pistols for the City of Cheyenne Police Department -- referred to Finance Committee.

[CA] Consideration of Bid #M-20-12 for a contract between the City of Cheyenne, Parks and Recreation Department, and S&S Builders, LLC, Cheyenne, Wyoming, for Holliday Park Connector Project (2007-2010, 2011-2014 1% Sales Tax & 1% Specific Purpose Tax) -- referred to Finance Committee.

[CA] Restaurant liquor license application filed with the City Clerk's Office for Judi Bufkin d/b/a Judi's Cajun Kitchen, 1719 Central Ave., Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

Announcement was made of the Appointments of Robert J. Walker to the Community Action of Laramie County Board and Scott Cowley to the Cheyenne-Laramie County Economic Development Joint Powers Board to be confirmed June 25, 2012.

Announcement was made of the Re-Appointments of Betsy Putnam, Dr. Richard Berry and Ronn Jeffrey to the Laramie County Juvenile Services Joint Powers Board to be confirmed June 25, 2012.

Announcement was made of a Public Hearing to be held June 25, 2012 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for an application for a transfer of ownership and transfer of location for a retail liquor license filed with the City Clerk's Office by Steamboat's LLC d/b/a Steamboat's Wyoming Steak and Smoke House, 1947 Dell Range Boulevard, Cheyenne, Wyoming (License currently held by Let'er Buck Investment Group LLC

d/b/a Steamboat's, (address not yet issued) to be located off Gardenia Drive between Yellowstone Road and El Camino Real in Cathedral Commons).

Announcement was made that two Calcuttas, benefitting Cheyenne area charities, will be held as follows: Sunday, July 22, 2012 beginning at 6:00 p.m. in the Calcutta tent located in front of the Old West Museum, 4601 North Carey Avenue, Frontier Park, in conjunction with the Championship Bull Riding event, and Saturday, July 28, 2012 beginning at 5:30 p.m. in the Calcutta tent located in front of the Old West Museum, 4601 North Carey Avenue, Frontier Park, Cheyenne, Wyoming, in conjunction with the 2012 Cheyenne Frontier Days celebration (10% of proceeds to bona fide charities).

Announcement was made of a Public Hearing to be held Tuesday, June 19, 2012 at 5:15 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for proposed budgets for the City of Cheyenne and Board of Public Utilities for Fiscal Year 2013.

Announcement was made of a Special Session of the Governing Body to be held Tuesday, June 19, 2012 at 5:30 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for proposed budgets for the City of Cheyenne and Board of Public Utilities for Fiscal Year 2013.

Under other business:

Inquiry was made pertaining to the consent agenda item involving a contract amendment with Southeast Wyoming Juvenile Services (refer to minutes for the item).

Upon inquiry, Rick Parish, Parks and Recreation Director, provided updated information regarding the current status of trees and shrubs in the median located on West Lincolnway and items that will be replaced; discussions with the landscaping contractor that have been held pursuant to services and warranties provided by the contractor for WYDOT for the latter's project, which was prior to the City acquiring maintenance responsibilities of the median area.

It was announced July 10, 2012 is the community's 3rd Annual Neighborhood Night Out event and those interested in participating in their neighborhood could contact the Police Department for information.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 6:57 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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